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CASE #	CASE NAME	HEARING NAME
CVME2402667	CAREY VS DEPARTMENT OF MOTOR VEHICLES HEADQUARTERS	MOTION TO STRIKE RESPONDENT'S OBJECTION AND WRIT OF MANDATE

Tentative Ruling: Motion to Strike is denied. Oral Arguments to Proceed on Writ of Mandate.

2.

CASE #	CASE NAME	HEARING NAME
CVME2501095	JOHNSON VS AG MURRIETA SNF LLC	PETITION TO COMPEL ARBITRATION

Tentative Ruling: Petition is Denied.

Under California law, Code of Civil Procedure §1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate, and the court shall order the parties to arbitrate if it determines that an agreement to arbitrate exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; (b) Grounds exist for the revocation of the agreement; or (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.

A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479). If there is a dispute as to the enforceability of an agreement to arbitrate, an evidentiary hearing is required. The facts are to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1157). The party petitioning for arbitration has the burden of proving that there is a valid arbitration agreement. (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247.) The opposing party has the burden of proving that the arbitration provision is unenforceable. (*Ibid.*) "In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Rosenthal v. Great Western Finance Securities Corp.* (1996) 14 Cal.4th 394, 413-414).

The Federal Arbitration Act (FAA) (9 U.S.C. §§1 et seq.) also authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. §2). The enforcement language of the FAA is almost identical to Code of Civil Procedure, section 1281. In situations governed by the FAA, conflicting state law is preempted in either state or federal courts. (*Volt Info. Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477). To compel arbitration under the FAA, a finding must be made that an agreement exists for arbitration between the parties and the agreement covers the dispute. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 648-49).

The leading U.S. Supreme Court case discussing the scope of arbitration clauses held that the enforcement of an arbitration clause is a matter of ordinary state-law contract